



**IN THE HIGH COURT OF PUNJAB AND HARYANA
AT CHANDIGARH**

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CWP-19264-2026

Date of Decision:17.06.2026

Aranaya Thakur

.....Petitioner

Vs.

Union of India and Others

.....Respondents

CORAM:- HON'BLE MR. JUSTICE DEEPAK GUPTA

Present:- Mr. Babbar Bhan, Advocate
for the petitioner.

DEEPAK GUPTA, J. (ORAL)

By way of this civil writ petition filed under Article 226/227 of the Constitution of India, petitioner prays for issuance of writ in the nature of mandamus for directing the respondents to invoke the Relaxation Clause under Para 5 of the Ministry Selection Criteria dated 24.09.2025 (Annexure P-6) in a time bound manner as well as for directing respondent No.4 (India Taekwondo) to conduct a selection trial in the merged Under-57 KG Women's Category for the upcoming 20th Asian Games (Aichi Nagoya, 2026) between the petitioner and other eligible/affected athlete from the subsumed divisions (Under-53 kg and Under-57 kg), to determine the athlete with the highest current performance capacity and medal-winning potential can be forwarded to the Asian Games, 2026.

2. It is submitted by learned counsel for the petitioner that petitioner is a silver medalist at the World Taekwondo Cadet Championship and India's top-ranked Senior athlete in the Under-57 kg category. Due to an external structural modification introduced by the Asian Taekwondo Union, sixteen standard weight categories were compressed into eight for the 2026 Asian Games, causing the separate Under-53 Kg and Under-57 Kg divisions to be subsumed into a single



Under-57 kg event. Learned counsel submits that petitioner has secured Gold in the Open Selection Trials for the specific Under-57 kg division. However, respondent No.4 forwarded the name of lower-weight category athlete, who won Bronze in the Under-53 kg division at the Asian Championship, without evaluating their current competitive merit within the actual 57 kg environment.

3. Learned counsel submits that existing criteria did not contemplate this category merger, making a direct, head-to-head Selection Trial between the eligible athletes from both subsumed divisions absolutely imperative to ensure public interest and maximize India's medal prospects. Learned counsel has referred to Para 5 of the Formulation of the Selection Criteria for Individuals and Teams for Participation in the 2026 Asian Games, Para-Asian Games 2026 and other multisports events (Annexure P-6), as per which if in the opinion of the experts of the specific sports disciplines and SAI, the participation of individuals and team in relaxation of the above criteria (as mentioned in para No.4) is recommended with justifiable reasons, the same will be considered in the Ministry for appropriate decision.

4. Learned counsel further submits that petitioner has made a representation (Annexure P-7) to the competent authorities, but no action has been taken so far. The only prayer made by learned counsel for the petitioner at this stage is to consider the said representation (Annexure P-7) as per the Relaxation Clause.

5. Notice of motion.

6. Mr. Sudhir Nar, Senior Panel Counsel accepts notice on behalf of respondent Nos.1 to 3; Mr. Mohit Garg, Advocate accepts notice on behalf of respondent No.4 and Mr. Saurabh Jain, Advocate put in appearance through Video Conferencing and accepts notice on behalf of respondent No.5.



7. Learned counsel appearing for respondent Nos.1 to 3 submits that respondent No.1- UOI has no objection so as to consider the representation (Annexure P-7). Learned counsel for respondent No.4 also submits that name of the petitioner should be recommended having regard to the previous achievements. However, petition is opposed by learned counsel for respondent No.5 submitting that in view of Clause 4(ii) (a) of the Formulation Selection Criteria (Annexure P-6), petitioner is not entitled for the relief.

8. Having considered submissions of both the sides, the present petition is hereby disposed of with the direction to the competent authority- respondent(s) so as to consider the representation (Annexure P-7) on or before 23.06.2026 within the parameters mentioned in Annexure P-6.

(DEEPAK GUPTA)
JUDGE

June 17, 2026

Neetika Tuteja

Whether Speaking/reasoned	Yes/No
Whether Reportable	Yes/No